



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

April 14, 2020

### POLICE COMMISSIONER'S PENALTY DEPARTURE

**Re:** CCRB Case No. 201808784 regarding Police Officer Christian Cayenne, Tax No. [REDACTED] (DADS No. 2019-21126), Police Officer Matthew Sabella, Tax No. [REDACTED] (DADS No. 2019-21128), and Police Officer Matthew Kelly, Tax No. [REDACTED]

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including the Body-Worn Camera footage, and has determined that Police Officer Cayenne, Police Officer Sabella, and Police Officer Kelly each receive Training from the Police Academy.

Contrary to the penalties proposed by the CCRB, the above penalties more accurately address the level of misconduct alleged in this case. Specifically, none of the alleged misconduct warrants the issuance of a Schedule B Command Discipline to any of the officers.

Instead, given the totality of the circumstances, the Police Commissioner has determined that while the officers' actions were improper, training is a more appropriate tool to prevent such misconduct in the future.

Specifically, the Police Commissioner has found that Police Officer Cayenne and Police Officer Sabella improperly stopped an individual and each would therefore benefit from receiving training from the Police Academy as it relates to stopping individuals during street encounters. Additionally, the Police Commissioner found that Police Officer Sabella would also benefit from receiving training from the Police Academy in Department's Use of Force Guidelines given that Police Officer Sabella improperly used force against an individual. Furthermore, the Police

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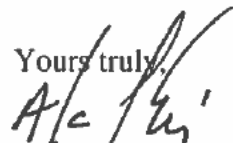
Website: <http://nyc.gov/nypd>

Commissioner has found that Police Officer Kelly used discourteous language, without necessity, toward an individual and should therefore receive training from the Police Academy as well.

Thus, Police Officer Cayenne, Police Officer Sabella, and Police Officer Kelly will each receive Training from the Police Academy to address their respective misconduct in this case.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



James W. Essig  
Assistant Chief  
Commanding Officer  
Police Commissioner's Office